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COMMISSION IMPLEMENTING REGULATION (EU) .../...

of **XXX**

on formats for submitting beneficial ownership information

(Text with EEA relevance)

COMMISSION IMPLEMENTING REGULATION (EU) .../...

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on formats for submitting beneficial ownership information

(Text with EEA relevance)

THE EUROPEAN COMMISSION,

Having regard to the Treaty on the Functioning of the European Union,

Having regard to Directive (EU) 2024/1640 of the European Parliament and of the Council of 31 May 2024 on the mechanisms to be put in place by Member States for the prevention of the use of the financial system for the purposes of money laundering or terrorist financing, amending Directive (EU) 2019/1937, and amending and repealing Directive (EU) 2015/849 (Text with EEA relevance) ¹, and in particular Article 10(6) thereof,

Whereas:

- (1) Regulation (EU) 2024/1624 of the European Parliament and of the Council² contains requirements on what information should be reported to the central registers of beneficial owners referred to in Directive (EU) 2024/1640 of the European Parliament and of the Council.
- (2) To provide clarity for entities that have an obligation to report their beneficial ownership to the central registers, ensure consistent quality of data collected and increase the interoperability of the central registers, it is necessary to lay down common formats for the submission of mandatory beneficial ownership information as laid down in Article 10(1) of Directive (EU) 2024/1640. To ensure that registrations are complete and that the central registers contain complete data records, it is necessary to lay down a checklist for minimum requirements.
- (3) In accordance with Regulation (EU) 2024/1624, certain categories of information are to always be submitted to the central register.
- (4) Similarly, the checklist represents the minimum requirements for acceptance of submitted beneficial ownership information. Submissions not complying with all those minimum requirements should not be accepted.
- (5) The rules laid down in this Regulation are without prejudice to rules of Member States on additional data points that are laid down for different purposes than those pursued

¹ Directive (EU) 2024/1640 of the European Parliament and of the Council of 31 May 2024 on the mechanisms to be put in place by Member States for the prevention of the use of the financial system for the purposes of money laundering or terrorist financing, amending Directive (EU) 2019/1937, and amending and repealing Directive (EU) 2015/849 (OJ L, 2024/1640, 19.6.2024, ELI: <http://data.europa.eu/eli/dir/2024/1640/oj>).

² Regulation (EU) 2024/1624 of the European Parliament and of the Council of 31 May 2024 on the prevention of the use of the financial system for the purposes of money laundering or terrorist financing (OJ L, 2024/1624, 19.6.2024, ELI: <http://data.europa.eu/eli/reg/2024/1624/oj>).

by Directive 2024/1640 and that comply with Union law. Such purposes could include supporting customer due diligence measures in accordance with Chapter III of Regulation (EU) 2024/1624 or reducing the risk in cases of a specific risk situation in a Member State.

- (6) This Regulation does not cover several data points specified in Regulation (EU) 2024/1624, even though they should always be submitted to the register where available. This applies to data points whose format is already established and does not need to be regulated further, such as national unique personal identification numbers, tax identification numbers and the Legal Entity Identifier.
- (7) Registration is presumed to be carried out from the point of view of a legal entity or arrangement. One legal entity or arrangement may have multiple beneficial owners. The entities in charge of central registers may therefore register each beneficial owner separately, through the same repeatable workflow, until all beneficial owners have been registered. Where some beneficial owners can be identified and some cannot, the repeatable workflows should follow the same logic and end at different points.
- (8) Where a legal entity or a legal arrangement submitting beneficial ownership information is a part of a complex structure that includes multiple legal entities or legal arrangements with links to the same beneficial owner or owners, a visual representation of the ownership or control structure ('organisational chart') should be submitted, as it is the most user-friendly and accessible way to understand the corporate structure the legal entity or legal arrangement belongs to. That organisational chart should contain a comprehensive record of all the composite elements of such structures, with indications of their nature and the links between them. In particular, an organisational chart should contain the names and the legal form of all legal entities and legal arrangements that own or control the legal entity or legal arrangement, as well as the nature and extent of such ownership or control, and a visual representation of the relationship between the beneficial owners of the legal entity or legal arrangement and all the legal entities and arrangements that are part of the ownership and control structure. Instead of such organisational charts, the entities in charge of central registers should have the possibility to collect information about a complex structure in specified formats or by means of structured or unstructured data fields or file uploads. That flexibility would allow for the evolution of best practices in comprehensively capturing the nature, purpose and all relevant specificities of a complex structure.
- (9) To reduce administrative burdens while contributing to a more seamless experience for the registrants and the central registers, it is necessary to provide for certain derogations related to data that is already present in other registers and is to be collected by the entities in charge of central registers. That should apply to certain items of information, including names, addresses, dates of birth, but potentially also to items including ownership interests and various types of basic data about legal entities and legal arrangements. Where the data sought is already retrievable from another register, the format requirements may be waived. Central registers may indicate the source of such data when displaying search results to users.
- (10) Registrations made before the date of application of this Regulation should not be affected by the format requirements immediately. However, it would be reasonable for Member States to require that any updates to such existing information should comply with this Regulation. Central registers may furthermore take this situation into account

if and when receiving discrepancy reports related to registrations yet to be updated after the entry into force of this Regulation.

- (11) In terms of the date as of which the beneficial interest is held, certain roles in legal arrangements may pose challenges. All parties to a legal arrangement should be registered, as those parties are all considered beneficial owners under Regulation (EU) 2024/1624. To avoid different interpretations of that Regulation in respect of defining the time at which the parties' beneficial interest came into being, the date of the beneficial interest for a settlor should be the date when the trust formally comes into existence. For a trustee, it should be the date of their appointment. For the beneficiaries, it should be the date on which they are declared beneficiaries in the deed or identified by the trustee of a discretionary trust. For a protector, it should be the date of their appointment.
- (12) To provide further clarification on the registration of certain deceased beneficial owners, where the beneficial owner of a legal arrangement is deceased, that fact may be indicated in the relevant data points. However, any data that was submitted when the beneficial owner was alive should continue to be kept in the register in accordance with the data retention provisions laid down in Article 10(20) of Directive (EU) 2024/1640.
- (13) Regulation (EU) 2016/679³ ('the GDPR') applies to the personal data processing activities under this Regulation.
- (14) The European Data Protection Supervisor has been consulted in accordance with Article 42(1) of Regulation (EU) 2018/1725 of the European Parliament and of the Council⁴ and delivered an opinion on 14 January 2026.
- (15) The measures provided for in this Regulation are in accordance with the opinion of the Committee on the Prevention of Money Laundering and Terrorist Financing.
- (16) As Regulation (EU) 2024/1624 applies from 10 July 2027, this Regulation should apply from the same date,

HAS ADOPTED THIS REGULATION:

Article 1

Formats for submission of data on beneficial owners

- 1. Data on beneficial owners shall be submitted in the following formats:
 - (a) first name(s): a sequence of characters, letters or numbers containing all of the beneficial owner's first names in full;
 - (b) surname(s): a sequence of characters, letters or numbers containing all of the beneficial owner's surnames in full;

³ Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (OJ L 119, 4.5.2016, p. 1, ELI: <http://data.europa.eu/eli/reg/2016/679/oj>).

⁴ Regulation (EU) 2018/1725 of the European Parliament and of the Council of 23 October 2018 on the protection of natural persons with regard to the processing of personal data by the Union institutions, bodies, offices and agencies and on the free movement of such data, and repealing Regulation (EC) No 45/2001 and Decision No 1247/2002/EC (OJ L 295, 21.11.2018, p. 39, ELI: <http://data.europa.eu/eli/reg/2018/1725/oj>).

- (c) place of birth: a sequence of letters or numbers;
 - (d) date of birth: a date containing year, month and day, as specified in Annex II;
 - (e) residential address: a sequence of characters, letters or numbers, as specified in Annex III;
 - (f) country of residence: an array containing at least the countries listed in ISO 3166-1 alpha-3;
 - (g) nationalities: an array, allowing multiple choices, containing at least the countries listed in ISO 3166-1 alpha-3 and a 'stateless' option;
 - (h) type of identity document: a sequence of characters, letters or numbers;
 - (i) identity document number: a sequence of characters, letters or numbers;
 - (j) country issuing the identity document: an array containing at least the countries listed in ISO 3166-1 alpha-3.
2. By way of derogation from paragraph 1, where the beneficial owner is deceased, that fact may be indicated instead of the data specified in paragraph 1, points (c) to (j).
3. Data on the nature and extent of the beneficial interest and on beneficial owners shall be submitted in the following formats:
- (a) type of ownership interest in the legal entity: an array, allowing multiple choices, with at least the following options:
 - (i) direct ownership;
 - (ii) indirect ownership;
 - (b) for legal arrangements, natural persons, referred to in Article 58 of Regulation (EU) 2024/1624, that were identified as beneficial owners: an array, allowing multiple choices, with at least the following options:
 - (i) settlor;
 - (ii) trustee;
 - (iii) beneficiary;
 - (iv) object of a power;
 - (v) default taker;
 - (vi) protector;
 - (vii) any other natural person exercising ultimate control over the legal arrangement by means of direct or indirect ownership or by other means, including through a chain of control or ownership;
 - (c) for legal entities, natural persons, referred to in Article 57 of Regulation (EU) 2024/1624 that were identified as beneficial owners: an array, allowing multiple choices, with at least the following options:
 - (i) founder;
 - (ii) member of the management body in its management function;
 - (iii) member of the management body in its supervisory function;
 - (iv) beneficiary;

- (v) any other natural person directly or indirectly controlling the legal entity;
 - (d) percentage of ownership interest in a corporate entity: a percentage allowing two decimal points;
 - (e) nature of control over the legal entity: an array, allowing multiple choices, with at least the following options:
 - (i) control through ownership;
 - (ii) control through voting rights;
 - (iii) control through right of appointments;
 - (iv) control through veto rights;
 - (v) control through distribution of profits;
 - (vi) control through formal or informal agreements;
 - (vii) control through relationships between family members;
 - (viii) control of the majority of voting rights through acting in concert with others;
 - (ix) control through nominee arrangements;
 - (f) date as of which the beneficial interest is held: a date containing year, month and day, as specified in Annex II.
4. By way of derogation from paragraph 3, where the legal entity or arrangement is a collective investment undertaking, the data on the nature and extent of the beneficial interest shall be submitted in the following formats:
- (a) direct or indirect holding of the units held in the collective investment undertaking: a percentage allowing two decimal points;
 - (b) ability to define or influence the investment policy of the collective investment undertaking: a sequence of characters, letters and numbers, or a file upload;
 - (c) control of the activities of the collective investment undertaking through other means: a sequence of characters, letters and numbers, or a file upload.
5. By way of derogation from paragraphs 1 to 4 of this Article, where the necessary data is already available in or reported to another register and can be displayed to the end user in full compliance with Regulation (EU) 2024/1624 and this Regulation, the entity in charge of the central register shall reuse this data or request it in the already available and established format.
6. Where it is not possible to identify a beneficial owner, the justification on the reasons for the absence of a beneficial owner shall be submitted in the format of an array with at least the following options:
- (a) If a beneficial owner does not exist:
 - (i) the ownership of the legal entity is dispersed such that no one has a sufficient ownership interest, nor does anyone have control through other means;
 - (ii) the legal entity has no legal owners by definition, and no one has a controlling interest, nor control by other means;
 - (iii) the beneficial owner of the legal arrangement is deceased;
 - (iv) the beneficial owner of the legal arrangement is an unborn descendant;

- (b) If a beneficial owner could not be determined after exhausting all means of identification provided for under Articles 51 to 57 of Regulation (EU) 2024/1624.
- 7. Data on senior managing officials shall be submitted in accordance with the formats established in paragraph 1. The derogation laid down in paragraph 5 shall apply equally to this paragraph.
- 8. Data on the person responsible for retaining the information in cases referred to in Article 63(6) of Regulation (EU) 2024/1624 shall be submitted in the following formats:
 - (a) identity of the person: the format shall be in accordance with the specifications in paragraph 1, points (a), (b), (h), (i) and (j) of this Article;
 - (b) contact details of the person: a postal address in compliance with the format specified in Annex III, an email address or a phone number.

Article 2

Formats for submission of data on legal entities

- 1. Data on legal entities shall be submitted in the following formats:
 - (a) name of the legal entity: a sequence of characters, letters or numbers;
 - (b) legal form:
 - (i) for legal entities created in the Member State of registration, an array containing the different legal forms allowed in that Member State;
 - (ii) for legal entities created outside a Member State, an array containing at least the terms “Company,” “Foundation” and “Other”;
 - (c) address of the registered or official office: a sequence of characters, letters or numbers, as specified in Annex III;
 - (d) address of the principal place of business where different from the address under point (c): a sequence of characters, letters or numbers, as specified in Annex III;
 - (e) country of creation: an array containing at least the countries listed in ISO 3166-1 alpha-3;
 - (f) names of the legal representatives:
 - (i) for a natural person, the format shall be the same as specified in Article 1, paragraph 1, points (a) and (b);
 - (ii) for a legal person, the format shall be the same as specified in this paragraph, points (a) and (b);
 - (g) reason for registration of legal entities created outside of the Union: an array, allowing multiple choices, containing at least the following options:
 - (i) the legal entity is entering into a business relationship with a Union obliged entity;
 - (ii) the legal entity is acquiring real estate in the Union;
 - (iii) the legal entity is acquiring, in the context of an occasional transaction, motor vehicles, watercraft or aircraft, meeting or exceeding the limits specified in Article 67(1), point (c), of Regulation (EU) 2024/1624;

- (iv) the legal entity is being awarded a public contract for goods or services, or concessions by a contracting authority in the Union;
 - (h) relevant documents and description in relation to point (g): a sequence of characters, letters and numbers, and a file upload;
 - (i) description of ownership and control structure: a file upload, or the submission of structured data, as specified in Annex I;
 - (j) where Article 59 of Regulation (EU) 2024/1624 applies, wherein the class of beneficiaries and its general characteristics shall be identified: a sequence of characters, letters or numbers shall be used for the description of the class of beneficiaries and its general characteristics.
2. By way of derogation from paragraph 1 of this Article, where the necessary data is already available in or reported to another register and can be displayed to the end user in full compliance with Regulation (EU) 2024/1624 and this Regulation, the entity in charge of the central register shall reuse this data or request it in the already available and established format.

Article 3

Formats for submission of data on legal arrangements

1. Data on legal arrangements shall be submitted in the following formats:
- (a) name of the legal arrangement: a sequence of characters, letters or numbers;
 - (b) unique identifier of the legal arrangement: a sequence of characters, letters or numbers;
 - (c) information on the trust deed or equivalent: a file upload, allowing the upload of the trust deed or equivalent, and any addenda or other binding documents related to the deed; where the trust deed or equivalent does not exist, a sequence of characters, letters or numbers shall be used instead to provide a general description, complemented by the following data points:
 - (i) type of settlement: an array, allowing multiple choices, containing at least the following options:
 - (1) unilateral;
 - (2) written instrument signed by the settlor and the trustee;
 - (3) inter vivos;
 - (4) testamentary;
 - (5) notarial;
 - (ii) law governing the legal arrangement: an array containing at least the countries listed in ISO 3166-1 alpha-3;
 - (iii) revocability of the legal arrangement: an array allowing at least the options revocable and irrevocable;
 - (iv) any reserved powers by the settlor, where applicable: a sequence of characters, letters or numbers;
 - (v) duties, powers and restrictions of the protector, where applicable: a sequence of characters, letters or numbers;

- (vi) excluded persons, where applicable: a sequence of characters, letters or numbers;
- (vii) date of original settlement: a date, containing year, month and day, as specified in Annex II;
- (d) purpose of the legal arrangement, if any: an array with at least the following options:
 - (i) asset management – real estate;
 - (ii) asset management – securities and liquidity management;
 - (iii) asset management – inheritance management;
 - (iv) asset management – mixed nature of assets;
 - (v) charitable purposes/donation;
- (e) value of assets held in the legal arrangement or managed through it: an array containing at least the following options relative to the value of the assets at the time of registration:
 - (i) the value of the assets is less than EUR 1 000 or the equivalent in national currency;
 - (ii) the value of the assets is between EUR 1 000 and EUR 10 000 or the equivalent in national currency;
 - (iii) the value of the assets is between EUR 10 000 and EUR 100 000 or the equivalent in national currency;
 - (iv) the value of the assets is between EUR 100 000 and EUR 1 000 000 or the equivalent in national currency;
 - (v) the value of the assets is between EUR 1 000 000 and EUR 10 000 000 or the equivalent in national currency;
 - (vi) the value of the assets is between EUR 10 000 000 and EUR 50 000 000 or the equivalent in national currency;
 - (vii) the value of the assets is more than EUR 50 000 000 or the equivalent in national currency;
- (f) place of residence of the trustee or person holding equivalent positions in similar legal arrangements: the format shall be the same as specified in Article 1, paragraph 1, point (e), repeatable in case there is more than one person;
- (g) place of administration, where different from the place of residence: the format shall be the same as specified in Article 1, paragraph 1, point (e), repeatable in case there is more than one person;
- (h) description of the beneficiaries: an array, allowing multiple choice, with the following options:
 - (i) identifiable individually and reported as beneficial owners;
 - (ii) non-identifiable/class of beneficiaries; a sequence of characters, letters or numbers shall be used for further description of the class of beneficiaries, where appropriate;
- (i) reason of registration for legal arrangements administered outside of the Union: the format shall be the same as specified in Article 2, paragraph 1, point (g);

- (j) relevant document(s) and description in relation to point (i): the format shall be the same as specified in Article 2, paragraph 1, point (h);
- (k) description of ownership or control structure: a file upload, or the submission of structured data, as specified in Annex I;
- (l) for discretionary trusts where objects of a power or default takers can be identified, individually or as classes:
 - (i) names and surnames of natural persons that were identified as objects of a power: the format shall be in accordance with the specifications in Article 1, paragraph 1, points (a) and (b);
 - (ii) names of legal entities and arrangements that were identified as objects of a power: the format shall be the same as specified in:
 - (1) Article 2, paragraph 1, points (a), (b) and (e), for legal entities;
 - (2) this Article and paragraph, points (a) and (b), for legal arrangements;
 - (iii) description of the objects of a power which are classes: a sequence of characters, letters or numbers;
 - (iv) names and surnames of natural persons that were identified as default takers: the format shall be in accordance with the specifications in paragraph 1, points (a) and (b);
 - (v) names of legal entities and arrangements that were identified as default takers: the format shall be the same as specified in:
 - (1) Article 2, paragraph 1, points (a), (b) and (e), for legal entities;
 - (2) this Article and paragraph, points (a) and (b), for legal arrangements;
 - (vi) description of default takers that are classes: a sequence of characters, letters or numbers.
- 2. By way of derogation from paragraph 1 of this Article, where the necessary data is already available in or reported to another register and can be displayed to the end user in full compliance with Regulation (EU) 2024/1624 and this Regulation, the entity in charge of the central register shall reuse this data or request it in the already available and established format.

Article 4

Formats for submission of data on nominees

- 1. Data on nominees shall be submitted in the following formats:
 - (a) names of nominee shareholders for nominee shareholders that are natural persons: the format shall be the same as specified in Article 1, paragraph 1, points (a), (b), (h), (i) and (j);
 - (b) names of nominee shareholders for nominee shareholders that are legal persons: the format shall be the same as specified in Article 2, paragraph 1, points (a), (b) and (e);
 - (c) status and relation with the legal entity of the nominee shareholder:
 - (i) the date when the nominee arrangement commenced;
 - (ii) an array containing at least the options “There is a formal nominee contract” and “There is an informal nominee agreement”;

- (iii) a sequence of characters, letters or numbers containing a description of the nature of the nominee arrangement;
 - (d) names of nominee directors for nominee directors that are natural persons: the format shall be the same as specified in Article 1, paragraph 1, points (a), (b), (h), (i) and (j);
 - (e) names of nominee directors for nominee directors that are legal persons: the format shall be the same as specified in Article 2, paragraph 1, points (a), (b) and (e);
 - (f) status and relation with the legal entity of the nominee director:
 - (i) the date when the nominee arrangement commenced;
 - (ii) an array containing at least the options “There is a formal nominee contract” and “There is an informal nominee agreement”;
 - (iii) a sequence of characters, letters or numbers containing a description of the nature of the nominee arrangement;
 - (g) identity of the nominators for nominators that are natural persons: the format shall be the same as specified in Article 1, paragraph 1, points (a), (b), (h), (i) and (j);
 - (h) identity of the nominators for nominators that are legal persons: the format shall be the same as specified in Article 2, paragraph 1, points (a), (b) and (e);
 - (i) nominator’s beneficial owners for nominators that are legal persons: the format shall be the same as specified in Article 1, paragraph 1, points (a), (b), (h), (i) and (j).
2. By way of derogation from paragraph 1 of this Article, where the necessary data is already available in or reported to another register and can be displayed to the end user in full compliance with Regulation (EU) 2024/1624 and this Regulation, the entity in charge of the central register shall reuse this data or request it in the already available and established format.

Article 5

Checklist

Entities in charge of central registers may accept submitted beneficial ownership information only where at least the following elements are present and where that submission complies with the relevant points of Articles 1, 2 and 3:

- (a) for a beneficial owner:
 - (i) personal data: Article 1(1), points (a) to (j);
 - (ii) data on the nature and extent of the beneficial interest and the beneficial owner(s) of the legal entity or legal arrangement: the relevant item(s) of Article 1(3) or (4), as appropriate;
- (b) for a legal entity:
 - (i) basic data: Article 2(1), points (a) to (f);
 - (ii) data on the ownership and control structure: where the ownership and control structure contains more than one legal entity or legal arrangement, Article 2(1), point (i);

- (iii) for legal entities that are companies, and where it is available: the EUID⁵.
- (c) for a legal arrangement:
 - (i) basic data: Article 3(1), points (a) to (h);
 - (ii) data on the ownership or control structure: where the ownership and control structure contains more than one legal entity or legal arrangement, Article 3(1), point (k).

Article 6

Entry into force and application

This Regulation shall enter into force on the twentieth day following that of its publication in the *Official Journal of the European Union*.

It shall apply from 10 July 2027.

This Regulation shall be binding in its entirety and directly applicable in all Member States.

Done at Brussels,

For the Commission
The President
Ursula Von der Leyen

⁵ As referred to in Section 9 of the Annex to Commission Implementing Regulation (EU) 2021/1042 of 18 June 2021 laying down rules for the application of Directive (EU) 2017/1132 of the European Parliament and of the Council as regards technical specifications and procedures for the system of interconnection of registers and repealing Commission Implementing Regulation (EU) 2020/2244 (Text with EEA relevance).